

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 20-002 Amendments to Title 5, Chapter 1, Article A, Section 5-101.5 of the Chickasaw Nation Code (Chickasaw Bar Association)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend the requirements of membership in the Chickasaw Bar Association in accordance with the desires of the Chickasaw Supreme Court.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves of the following amendments to Title 5, Chapter 1, Article A, Section 5-101.5 of the Chickasaw Nation Code. Additions will be shown in red and deletions will be shown as stricken. All other Sections and Subsections of Title 5, Chapter 1, Article A will remain the same and are not affected by this resolution:

"SECTION 5-101.5 CHICKASAW BAR ASSOCIATION.

A. Any person shall be authorized to practice as an attorney and counselor at law in any Court of the Chickasaw Nation who has been admitted to the Bar of the Chickasaw Nation. The Bar of the Chickasaw Nation shall be open to any person who: **is an attorney at law and is admitted to practice before a court and is a member in good standing of such Bar.**

~~_____ 1. _____ is a member or past member of the Chickasaw Supreme Court; or~~

~~_____ 2. _____ has regularly practiced before any Court of any state of the United States or
_____ the United States and is a member in good standing of the Bar of such court; or~~

~~_____ 3. _____ is a Native American graduate of an American Bar Association approved Law School, or a paralegal program approved by the Chickasaw Nation Supreme Court; and has demonstrated an ability to practice law as an attorney or counselor at law; and has never been convicted of a felony, whether or not actually imprisoned; and have not been convicted of any offense, except traffic offense; and is not less than twenty-five (25) years of age.~~

B. All persons authorized under this Section shall become members of the Chickasaw Bar Association and their names shall be added to the roll of attorneys for the Chickasaw Supreme Court upon paying an annual fifty dollar (\$50) ~~twenty-five dollar (\$25.00)~~ membership fee, and such other additional fees as the Supreme Court may assess, to the Clerk of the Court and taking and signing the following oath before the Clerk of the Court: ~~or a Judge of the Court:~~

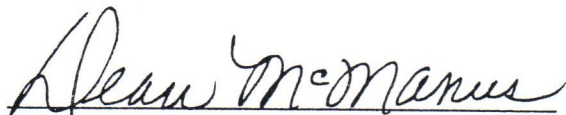
You do solemnly swear that you will support, protect and defend the Constitution of the United States and the Constitution of the Chickasaw Nation; that you will do no falsehood or consent that any be done in court, and if you know of any you will give knowledge thereof to the Judges of the Court, or some one of them, that it may be reformed; you will not wittingly, willingly or knowingly promote, sue or procure to be sued, any false or unlawful suit, or give aid or consent to the same; you will delay no man for lucre or malice, but will act in the office of attorney in this Court according to your best learning and discretion, with all good fidelity as well to the Court as to your client, so help you God.

C. All fees collected from Chickasaw Bar Association members shall be held by the Supreme Court and managed and expended for the membership of the Chickasaw Bar Association."

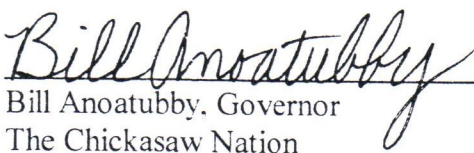
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 20, 2002, by a vote of 12 ayes, 1 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 20 2002

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 20-002
Amendment to Title 5, Chapter 1, Article A, Section 5-101.5
of the Chickasaw Nation Code
(Chickasaw Bar Association)**

Explanation: This resolution approves of amendments to the requirements of membership in the Chickasaw Bar Association as requested by the Chickasaw Supreme Court.

Requested By: Jay B. Johnson, Chief Justice
Chickasaw Supreme Court

Presented By: D. Scott Colbert, Chairman
Court Development Ad Hoc Sub-Committee